

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: October 24, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

Order Denying Motion to Dismiss

On June 17, 2024, Respondent Flexport International LLC (“Flexport”) filed a Motion to Dismiss (“Motion”), seeking to dismiss the complaint filed by Peloton Interactive, Inc. (“Peloton”) for lack of subject matter jurisdiction, failure to allege essential elements, and failure to identify what information it alleges is missing from the invoices alleged in the Complaint.

On September 25, 2024, the Motion was deferred pending filing of an Amended Complaint. On October 2, 2024, Peloton filed the Amended Complaint, addressing the issues raised in the Order Deferring Motion to Dismiss.

Accordingly, it is **ORDERED** that Respondent Flexport International LLC’s Motion to Dismiss be **DENIED AS MOOT**. It is

FURTHER ORDERED that Respondent Flexport International LLC file an Answer to the Amended Complaint by October 29, 2024. It is

FURTHER ORDERED that the parties submit a Joint Status Report by November 6, 2024, as set forth in the Initial Order and including a proposed discovery schedule that allows for the Initial Decision to issue by May 8, 2025, as set by the Commission. Notice of Filing of Complaint and Assignment at 2.



Linda S. Harris Crovella
Administrative Law Judge